

International agreements

Defining international treaties

A treaty is an international written agreement between nation states. Governed by international law, treaties contain mutual understandings and intentions that help guide how nations relate to each other.

The importance of international treaties for Australia

With increased globalisation, international treaties are becoming more important, particularly for a country such as Australia. Australia is considered to be a 'middle power'—it does not carry the weight of larger countries like the United States or China. Negotiating international treaties allows Australia to have a global voice and prevent economic or strategic isolation. Australia's geographical location is also an advantage. Its cultural links to Europe and America and geographical position in the Asia-Pacific region provides unique cultural, economic and political insights.

The impact of treaties upon Australia

When a nation signs an international convention or treaty, it is an expression of its political sovereignty (ability to make its own decisions). However, the act of signing a treaty does not make it legally binding. The terms of a treaty become binding only if the signatory nation's laws change to reflect the conditions of the treaty. There is an expectation, however, that in signing an international treaty a government will try to honour the conditions as closely as possible. Without such a commitment, the treaty has no real authority or meaning.

Major international treaties signed by Australia

Nations are not always able to deal with problems in isolation. Issues such as drug trafficking, war, people smuggling and environmental degradation cross international borders. To resolve these issues, countries must cooperate with each other.

The World Heritage Convention

The World Heritage Convention (WHC) was adopted in Paris, 16 November 1972. Australia became one of the first countries to ratify (confirm agreement with) the Convention in August 1974. An initiative of the United

Nations Educational, Scientific, Cultural Organization (UNESCO) the convention seeks to preserve sites of outstanding universal value.

Under the WHC, the World Heritage List includes sites in two categories: natural and cultural. Sites of cultural value include monuments, buildings or archaeological sites. Natural heritage refers to a natural feature or site that harbours rare species of animal and plant life, or geological and physiological formations that are rare and distinctive in beauty.

THE WORLD HERITAGE LIST

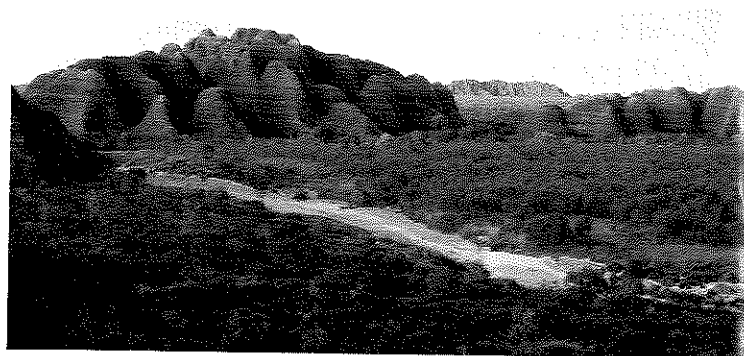
There are currently 851 sites on the World Heritage List; Australia has 19 sites (see Source 2.3.1) including the Sydney Opera House, Kakadu National Park, the Blue Mountains, the Great Barrier Reef and the Tasmanian Wilderness. Having a listed site elevates a country's international profile. It brings increased tourism and employment opportunities that create income for local communities.

THE WORLD HERITAGE COMMITTEE

The World Heritage Committee administers the WHC. It selects new sites for listing, decides who qualifies for international assistance for their heritage sites, and manages the World Heritage Fund. It also identifies heritage sites that are in danger. Australia has served four terms on the committee.

RESPONSIBILITIES UNDER THE TREATY

Countries have a responsibility to preserve and protect their heritage sites. This includes planning programs to ensure protection of a site in the long term and investing in the use of technology. If a nation cannot pay for the upkeep, the UNESCO World Heritage Fund



Source 2.3.1 Dawn at Purnululu National Park, one of Western Australia's World Heritage sites

can assist with financial costs. Australia's obligations under the WHC are enacted under the *Environment Protection and Biodiversity Conservation Act 1999*. This is evidence of Australia's commitment to the principles of the WHC.

CONCERNS FOR THE GREAT BARRIER REEF

Queensland's Great Barrier Reef could be placed on the WHC danger list. The danger list is normally reserved for sites in war zones or under threat from natural disaster. Experts believe the state and federal governments are not acting quickly enough to stop the destruction of the reef (see Source 2.3.2). Mining in Queensland is also having a negative impact.



Source 2.3.2 Greenpeace campaigns to raise awareness of the degradation of the Great Barrier Reef

International Convention on the Elimination of All Forms of Racial Discrimination

The International Convention on the Elimination of All Forms of Racial Discrimination (CERD) came into effect on 4 January 1969. It was the second human rights treaty authored by the United Nations, after the 1948 Universal Declaration of Human Rights. Australia ratified the treaty on 30 September 1975.

The treaty states that racial discrimination occurs when a person is given unequal or different treatment because of their race, colour, descent, ethnic origin or nationality. This unfair treatment is a violation of human rights and freedoms.

OBLIGATIONS UNDER THE TREATY

When a country signs CERD they agree:

- not to engage in or endorse any type of racial discrimination
- to alter policies and change laws which enforce or create racial discrimination

- to prohibit organisations that promote racial discrimination, racial hatred and violence
- to ensure that victims of discrimination are protected
- to recognise that creating laws does not erase racism alone; it needs to be supported through education and a change in political culture.

THE IMPLEMENTATION OF CERD IN AUSTRALIA

When the charter was initially signed, human rights in Australia had little protection constitutionally or legally. In signing the charter, however, there was an understanding that Australia wanted to uphold its key principles and would endeavour to make the necessary domestic changes.

- **The Racial Discrimination Act 1975**—The Racial Discrimination Bill was introduced to federal parliament in June 1975. It took four attempts before the bill was passed in both houses. The crucial element in its eventual victory was the argument that Australia should uphold its international obligations under CERD. Advocates for the bill also argued that common law was no longer a sufficient protection of human rights.
- **Amendments to the Racial Discrimination Act**—In 1995, racial vilification provisions were added to the Racial Discrimination Act. Under Section 18C it is now unlawful to commit a public act that is reasonably likely to offend, humiliate, insult or intimidate an individual due to their race, colour, ethnicity or nationality. Section 18D outlined free speech exceptions. In 2014, there were proposals to change these provisions, but they were unsuccessful.

INTERNATIONAL SCRUTINY OF AUSTRALIAN FULFILMENT OF CERD

Signatories to the charter should provide a report to the CERD Committee every two years on how they are implementing CERD. Australia submitted its most recent report in 2016, and at the time of publication CERD's response had not yet been published. In its 2010 response to Australia's second last report the committee declared that, both legally and politically, Australia's implementation of the convention had been only partial and inadequate. The committee did respond positively to the Apology to the Stolen Generations (2008), the endorsement of the UN Declaration on the Rights of Indigenous Peoples (2009) and the introduction of the Close the Gap policy (2006).